

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the 'Agreement') is entered into as of June 2, 2026 (the 'Effective Date') by and between Acme Corporation, a Delaware corporation ('Acme'), and Beta Startups Inc., a California corporation ('Beta').

1. Definition of Confidential Information

For purposes of this Agreement, 'Confidential Information' shall include all information or material that has or could have commercial value or other utility in the business in which Disclosing Party is engaged. If Information is in written form, the Disclosing Party shall label or stamp the materials with the word 'Confidential' or some similar warning.

2. Obligations of Receiving Party

The Receiving Party shall limit disclosure of Confidential Information within its own organization to its directors, officers, employees, and consultants who have a need to know such information. The Receiving Party shall not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party. Under no circumstances shall either party be liable for indirect, punitive, or consequential damages under this Agreement.

3. Term and Termination

The non-disclosure provisions of this Agreement shall survive the termination of this Agreement and Receiving Party's duty to hold Confidential Information in confidence shall remain in effect for a period of five (5) years from the Effective Date, or until such time as Disclosing Party releases Receiving Party from such obligation in writing.

Either party may terminate this Agreement for convenience immediately upon written notice. However, all obligations regarding Confidential Information received prior to termination shall survive such termination.

4. Governing Law and Jurisdiction

This Agreement shall be governed by, and construed in accordance with, the laws of the State of Delaware, without regard to its conflicts of law principles. Any dispute arising out of this Agreement shall be brought exclusively in the courts of Delaware.